

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #16	CCRB Case #: 201601072	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/02/2016 9:30 PM	Location of Incident: Grand Concourse near the intersection of Van Cortlandt Street	Precinct: 52	18 Mo. SOL 8/2/2017	EO SOL 8/2/2017	
Date/Time CV Reported Wed, 02/03/2016 2:03 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/09/2016 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Shaun Garrett	02245	926868	GANG BX
2. POM Adlai Pinney	27724	946122	GANG BX
3. DT3 Brian Green	5001	932740	GANG BX

Officer(s)	Allegation	Investigator Recommendation
A.SGT Shaun Garrett	Abuse: Sergeant Shaun Garrett stopped the vehicle in which § 87(2)(b) was an occupant.	
B.DT3 Brian Green	Abuse: Detective Brian Green stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Adlai Pinney	Abuse: Police Officer Adlai Pinney stopped the vehicle in which § 87(2)(b) was an occupant.	
D.DT3 Brian Green	Abuse: Detective Brian Green frisked § 87(2)(b)	
E.DT3 Brian Green	Abuse: Detective Brian Green searched § 87(2)(b)	
F.DT3 Brian Green	Abuse: Detective Brian Green searched the vehicle in which § 87(2)(b) was an occupant.	
G.DT3 Brian Green	Abuse: Detective Brian Green threatened to arrest § 87(2)(b).	
§ 87(2)(g), § 87(4-b)		

Case Summary

On February 3, 2016, § 87(2)(b) filed this complaint with IAB via telephone. On February 9, 2016, the complaint was forwarded to the CCRB via IAB log #2016-04172.

At approximately 9:30 p.m. on February 2, 2016, § 87(2)(b) was driving along the Grand Concourse, near the intersection with Van Cortlandt Street, in the Bronx. He was pulled over by three plainclothes officers in an unmarked sedan: Sgt. Shaun Garrett, Det. Brian Green and PO Adlai Pinney of the Bronx Gang Squad (**Allegations A, B and C**). Det. Green approached § 87(2)(b) at the driver's seat and asked him to exit the vehicle. Once § 87(2)(b) stepped out, Det. Green frisked him around his waistband and his jacket and pants pockets (**Allegation D**). He then reached into § 87(2)(b)'s front-right pants pocket (**Allegation E**). Nothing was recovered from him. Det. Green then walked § 87(2)(b) to the rear of the vehicle. There, Sgt. Garrett informed him that he had an open warrant. As Sgt. Garrett spoke to § 87(2)(b) Det. Green leaned into the front driver's seat of § 87(2)(b)'s car and searched the interior (**Allegation F**). Nothing was removed from the vehicle. At the rear of the car, § 87(2)(b) complained that he was being stopped for no reason. Det. Green then asked him, "You have a warrant. Do you want me to arrest you?" (**Allegation G**). § 87(2)(b) replied that if the officers wanted to arrest him, then they should go ahead and arrest him. The officers ultimately did not issue § 87(2)(b) a summons or arrest him, and instead released him with a warning and admonishment.

This case was submitted for review approximately three months beyond the 90-day benchmark. The case was delayed due to difficulty in obtaining documents from the Bronx Gang Squad. The initial document requests to the command was lost after it was received at the IAB liaison, and had to be resubmitted almost a month later. Subsequent document requests were not returned for several months after their initial submission. Finally, the Gang Squad provided roll calls for only a select number of the squads that were on duty at the time of the incident. It was not determined that there were additional roll calls available until approximately four months after the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) did not wish to mediate the complaint § 87(2)(b).
- § 87(2)(b) did not file a notice of claim regarding the incident (See Board Review #1: Notice of Claim Request).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (See Board Review #03: Civilian CCRB History).
- Sgt. Garrett has been a member of the service for fifteen years and there are no substantiated allegations against him. He has been the subject of four allegations, spread over three cases. This is the first vehicle stop allegation pleaded against him.
- Det. Green has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him. He has been the subject of four allegations,

spread over two cases. A previous vehicle search allegation against him was closed as exonerated. Det. Green has never been the subject of a vehicle stop, frisk, search or threat of arrest allegation.

- PO Pinney has been a member of the service for eight years and there are no substantiated CCRB allegations against him. He has been the subject of fifteen allegations spread over seven cases. This is the first vehicle stop allegation pleaded against him.

Findings and Recommendations

Allegation A –Abuse of Authority: Sergeant Shaun Garrett stopped the vehicle in which

§ 87(2)(b) was an occupant.

Allegation B - Abuse of Authority: Detective Brian Green stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C - Abuse of Authority: Police Officer Adlai Pinney stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) was pulled over by the three officers. It is also undisputed that the officers released § 87(2)(b) after issuing him a warning and admonishment, and that he was not arrested or issued a summons.

§ 87(2)(b) was interviewed at the CCRB on February 17, 2016 (See Board Review #04: § 87(2)(b)'s Statement). He denied that he committed any moving violations before he was pulled over. § 87(2)(b) alleged that after he was pulled over, Det. Green told him that he was stopped because his car had a broken taillight, and because he had an active warrant. § 87(2)(b) denied both that his taillight was broken, and that he had a warrant. After the incident, § 87(2)(b) went to a courthouse and contacted the Warrant Squad to determine if he did have an active warrant. He was informed that no active warrants were found in his name.

Sgt. Garrett was interviewed at the CCRB on August 9, 2016. PO Pinney was interviewed at the CCRB on August 3, 2016. Det. Green was interviewed at the CCRB on August 19, 2016 (See Board Review #05-07: Officer Statements). All three officers stated that they observed § 87(2)(b) commit multiple moving violations before he was pulled over. All three stated that § 87(2)(b) was speeding at the time. None recalled the specific speed that he was traveling at, but stated that his observed speed exceeded the posted speed limit on the Grand Concourse. Sgt. Garrett and PO Pinney both stated that one of § 87(2)(b)'s taillights was out. Det. Green also stated that § 87(2)(b) failed to signal a turn. All three officers explained that § 87(2)(b) was not issued a summons or arrested because § 87(2)(b)'s violations were relatively minor. They instead exercised their discretion to release § 87(2)(b) with a warning and admonishment.

All three officers also stated that a warrant check conducted on § 87(2)(b)'s license plate conducted before the stop was initiated indicated that § 87(2)(b) had an open warrant. Det. Green described it as a SAP warrant, a type of bench warrant issued for cases involving violations of the city's Administrative Code. Sgt. Garrett did not recall the offense that the warrant was issued for, but stated that it was a bench warrant for a non-felony offense. PO Pinney did not recall any details about the warrant. All three officers stated that they did not know whether § 87(2)(b)

§ 87(2)(b) was actually the driver of the vehicle until he was stopped and he provided his driver's license to Det. Green.

An IAB search for arrest or bench warrants that were active for § 87(2)(b) at the time of the incident returned negative results. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

An officer may stop a vehicle if they possess a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime. An officer may also stop a vehicle if they possess probable cause to believe that the driver committed a traffic violation. This stands regardless of the officer's underlying motivation in conducting the stop or desire to conduct another investigation. People v. Taylor, 31 A.D.3d 1141 (App. Term, 4th Dept. 2006). People v. Weishaupt, 2014 N.Y. App. Div. LEXIS 4169. (App. Term, 3rd Dept. 2014) (See Board Review#08-09: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Allegation D - Abuse of Authority: Detective Brian Green frisked § 87(2)(b)

It is undisputed that Det. Green frisked § 87(2)(b). Det. Green explained that he frisked § 87(2)(b) to ensure that he did not have any weapons. He thought that § 87(2)(b) might have had a weapon because he had an active warrant, and because he felt that § 87(2)(b) was being "combative" when he repeatedly denied either committing any moving violations or having an active warrant. He did not make any other observations about § 87(2)(b)'s appearance or behavior that indicated to him that § 87(2)(b) was armed. He denied seeing any suspicious bulges on § 87(2)(b)'s person at any time. While Det. Green indicated that § 87(2)(b) had an active warrant at the time, he indicated that it was a SAP warrant issued for a minor offense, and that he had no intention of arresting § 87(2)(b) at that time. Neither Sgt. Garrett nor PO Pinney had any suspicion that § 87(2)(b) was armed at any point during the incident.

An officer may frisk a person if he or she possesses a reasonable suspicion that the individual has concealed a weapon on their person, or has been engaged in the commission of a violent crime. Absent this suspicion, an officer may also frisk an individual before loading them into a police vehicle for transportation. People v. Smith, 2015 N.Y. App. Div. LEXIS 9555 (App. Term, 4th

Dept. 2015). People v. Torres, 239 A.D.2d 154 (App. Term, 1st Dept. 1997) (See Board Review #10-11: Legal Reference).

§ 87(2)(g)

§ 87(2)(g)

Allegation E –Abuse of Authority: Detective Brian Green searched § 87(2)(b)

§ 87(2)(b) alleged that when Det. Green frisked him, he felt a bulge on his front-right pants pocket that was created by the key fob from his vehicle. Det. Green asked him what the bulge was. § 87(2)(b) explained that it was from his key fob. Det. Green then reached into the pocket to feel the fob himself. Det. Green then removed his hand from the pocket. He did not reach into any of § 87(2)(b)'s other pockets.

Det. Green and the other officers denied that any of them reached into § 87(2)(b)'s pockets. All denied that there was any discussion of § 87(2)(b)'s key fob during the incident. Det. Green stated that he felt several bulges on § 87(2)(b)'s pockets during the frisk, but that he attributed all of them to innocuous objects such as § 87(2)(b)'s wallet. He denied questioning § 87(2)(b) about any objects that he felt during the frisk.

§ 87(2)(g)

Allegation F –Abuse of Authority: Detective Brian Green searched the vehicle in which
§ 87(2)(b) **was an occupant.**

It is undisputed that Det. Green entered and searched § 87(2)(b)'s vehicle through the driver's door, and that nothing was removed from the vehicle. § 87(2)(b) did not see the specific areas of the vehicle that Det. Green searched. Det. Green stated that he leaned into the car to perform a visual inspection of the area around the driver's seat. Det. Green also looked underneath the driver's seat. Det. Green searched § 87(2)(b)'s vehicle to find any weapons inside. While he

did not have a specific suspicion that § 87(2)(b) was armed, he conducted the search because of § 87(2)(b)'s alleged open warrant.

Under the general automobile exception, an officer requires probable cause to believe that a vehicle contains evidence or contraband in order to search the vehicle without a warrant. Officers are also permitted to conduct a limited search to retrieve a weapon inside of a vehicle if they reasonably believe that it poses an immediate threat to their safety. This exception does not apply when the vehicle's occupants have already been removed from the vehicle and no longer have access to the weapon. People v. Torres, 74 N.Y.2d 224 (1989) (Board Review #12: Legal Reference).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation G –Abuse of Authority: Detective Brian Green threatened to arrest § 87(2)(b)

[REDACTED]

§ 87(2)(b) alleged that after he complained to Sgt. Garrett about being stopped, Det. Green told him, “You have a warrant. Do you want me to arrest you?” All of the officers denied that Det. Green or any other officer made this statement. The officers stated that it was explained to § 87(2)(b) that he should go to the courthouse to address his warrant. They denied that any officer threatened to arrest him based upon his behavior during the vehicle stop.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g), § 87(4-b)
[REDACTED]

§ 87(2)(g), § 87(4-b)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date